

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER

0044035665

PAGE 1 OF 62

2. CONTRACT NUMBER

3. AWARD/EFFECTIVE DATE

4. ORDER NUMBER

5. SOLICITATION NUMBER
140R1726Q0021

6. SOLICITATION ISSUE DATE

04/13/2026

7. FOR SOLICITATION INFORMATION CALL:

a. NAME

Terry Mest

b. TELEPHONE NUMBER (No collect calls)

5096339327

8. OFFER DUE DATE/ LOCAL TIME

04/24/2026 1700 PD

9. ISSUED BY

CODE

R17

Bureau of Reclamation
Pacific Northwest Region
Grand Coulee Acquisition Group
Hwy 155, PO Box 620
Grand Coulee WA 99133

10. THIS ACQUISITION IS

☒ UNRESTRICTED OR ☐ SET ASIDE: % FOR:

☐ SMALL BUSINESS

☐ WOMEN-OWNED SMALL BUSINESS (WOSB)

NORTH AMERICAN
INDUSTRY CLASSIFICATION
STANDARD (NAICS):

922120

SIZE STANDARD:

☐ HUBZONE SMALL BUSINESS

☐ ECONOMICALLY DISADVANTAGED

☐ SERVICE-DISABLED

☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB)

☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB)

☐ 8(A)

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED

☐ SEE SCHEDULE

12. DISCOUNT TERMS

13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)

13b. RATING

14. METHOD OF SOLICITATION REQUEST
☒ REQUEST ☐ INVITATION ☐ FOR
FOR QUOTE (RFQ) FOR BID (IFB) PROPOSAL (RFP)

15. DELIVER TO

CODE

0011285580

See Schedule

16. ADMINISTERED BY

CODE

R17

See Schedule

17a. CONTRACTOR/ OFFEROR

CODE

FACILITY CODE

18a. PAYMENT WILL BE MADE BY

CODE

TELEPHONE NUMBER

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.

20. SCHEDULE OF SUPPLIES/SERVICES

21. QUANTITY

22. UNIT

23. UNIT PRICE

24. AMOUNT

ADMINISTERED BY:
Bureau of Reclamation
Pacific Northwest Region
Grand Coulee Acquisition Group
Hwy 155, PO Box 620
Grand Coulee WA 99133 US

Continued...

(Use Reverse and/or Attach Additional Sheets as Necessary)

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT (For Government Use Only)

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. ADDENDA FAR 52.212-3 AND 52.212-5 ARE ATTACHED.

☒ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA

☐ ARE ☐ ARE NOT ATTACHED

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

30b. NAME AND TITLE OF SIGNER (Type or print)

30c. DATE SIGNED

31b. NAME OF CONTRACTING OFFICER (Type or print)

31c. DATE SIGNED

Terry Mest

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	DELIVER TO: Bureau of Reclamation-PN-CCAO Umatilla Field Office 32871 Diagonal Road Hermiston OR 97838-6307 US Delivery: 05/31/2027 Period of Performance: 06/01/2026 to 05/30/2031				
00010	Umatilla Field Office Law Enforcement pursuant to attached Performance Work Statement Base Year Product/Service Code: S206 Product/Service Description: HOUSEKEEPING-GUARD Period of Performance: 06/01/2026 to 05/31/2027				
00020	Umatilla Field Office Law Enforcement pursuant to attached Performance Work Statement Option Year One (Option Line Item) Anticipated Exercise Date 05/31/2027 Product/Service Code: S206 Product/Service Description: HOUSEKEEPING-GUARD Period of Performance: 06/01/2027 to 05/31/2028 Continued...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED☐ INSPECTED☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42a. RECEIVED BY (Print)

42b. RECEIVED AT (Location)

42c. DATE RECEIVED (MM/DD/YYYY)

42d. TOTAL CONTAINERS

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
	140R1726Q0021	PAGE 3 OF 62
NAME OF OFFEROR OR CONTRACTOR		

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
00030	Umatilla Field Office Law Enforcement pursuant to attached Performance Work Statement Option Year Two (Option Line Item) Anticipated Exercise Date 05/31/2028 Product/Service Code: S206 Product/Service Description: HOUSEKEEPING-GUARD Period of Performance: 06/01/2028 to 05/31/2029				
00040	Umatilla Field office Law Enforcement pursuant to attached Performance Work Statement Option Year Three (Option Line Item) Anticipated Exercise Date 05/31/2029 Product/Service Code: S206 Product/Service Description: HOUSEKEEPING-GUARD Period of Performance: 06/01/2029 to 05/31/2030				
00050	Umatilla Field Office Law Enforcement pursuant to attached Performance Work Statement Option Year Four (Option Line Item) Anticipated Exercise Date 05/31/2030 Product/Service Code: S206 Product/Service Description: HOUSEKEEPING-GUARD Period of Performance: 06/01/2030 to 05/31/2031				

Continuation of 1449, Block 20, Schedule of Supplies/Services
Performance Work Statement (PWS)
Law Enforcement Services
Bureau of Reclamation
Pacific Northwest Region
Umatilla Field Office
Hermiston, Oregon

C.1 Introduction

The Bureau of Reclamation has a requirement for dedicated deterrence patrol and Law Enforcement (LE) services on properties administered by the Umatilla Field Office (UFO) in Hermiston, Oregon. A dedicated law enforcement patrol presence provides continuous visual deterrence and allows for rapid response to illegal activities and public safety issues. Additionally, the UFO staff may require law enforcement support in the event of an emergency.

C.1.1 Mission

The mission of the Bureau of Reclamation is to manage, develop, and protect water and related resources in an environmentally and economically sound manner in the interest of the American public.

C.1.2 Background

Reclamation's UFO is responsible for the administration of the facilities and lands associated with the Umatilla Project. The project includes facilities, structures and properties within Project's physical and administrative boundaries consisting of the two high-hazard dams, five pumping plants, a large undeveloped property at the edge of an urban area, a field office and maintenance compound, and many miles of canals.

The Contractor shall be expected to enforce State, County, and local laws, ordinances, rules and regulations and to make non-federal arrests and issue citations on Umatilla Project property (proprietary jurisdiction) within the Contractors' jurisdiction.

C.1.3 Scope

The Umatilla Project has no dedicated law enforcement personnel. The purpose of this procurement is to provide visible law enforcement presence for deterrence of and rapid response to public safety issues, crimes, and potential threats in areas on the Umatilla Project for which Reclamation is responsible. Additionally, in the event of an emergency, the Umatilla Field Office or McKay Field Station may require law enforcement assistance in carrying out required Project or public safety duties.

- A. The Contractor shall provide 780 hours of patrols and/or enforcement actions per year.
- B. Any suspicious person or activity shall be investigated.
- C. Enforcement actions shall be at the Contractor's employee discretion.
- D. The Contractor's employees are expected to use their judgement on individual cases.

C.2 General Requirements

This section describes the general requirements for this effort. The following sub-sections provide details of various considerations on this effort.

C.2.1 Non-Personal Services

The Government shall neither supervise contractor employees nor control the method by which the Contractor performs the required tasks. Under no circumstances shall the Government assign tasks to, or prepare work schedules for, individual Contractor employees. It shall be the responsibility of the Contractor to manage its employees and to guard against any actions that are of the nature of personal services or give the perception of personal services. If the Contractor believes that any actions constitute, or are perceived to constitute personal services, it shall be the Contractor's responsibility to notify the Contracting Officer (CO) immediately.

C.2.2 Business Relations

The Contractor shall successfully integrate and coordinate all activity needed to execute the requirement. The Contractor shall manage the timeliness, completeness, and quality of problem identification. The Contractor shall provide corrective action plans, proposal submittals, and timely identification of issues. The Contractor shall seek to ensure customer satisfaction and professional and ethical behavior of all Contractor personnel.

C.2.3 Contract Administration and Management

The Contractor shall establish processes and assign appropriate resources to effectively administer the requirement. The Contractor shall respond to Government requests for contractual actions in a timely fashion.

C.2.3.1 Contract Management

The Contractor shall identify a Program Manager (PM) for the purchase order. The PM will serve as a primary point of contact for all issues of central management, liaison, and communication between the Contractor and the Government. The PM shall be someone already on the Contractor's payroll. The PM shall be a principal or someone with adequate authority to provide answers to the Government should any situations arise with Contractor personnel. The PM shall be available Monday through Friday during normal business hours. The Contractor shall notify the Government of any change in PM.

C.2.3.2 Contract Administration

The Contractor shall have a single point of contact between the Government and Contractor personnel assigned to support the purchase order. The Contractor shall assign work effort and maintain proper and accurate time keeping records of personnel assigned to work on the requirement.

C.2.3.3 Personnel Administration

The Contractor shall maintain personnel records for each employee. The records shall

be made available for Government inspection to ensure compliance with the contract. Records include but are not limited to: Oregon Department of Public Safety Standards and Training (DPSST) training completion; verifications of license application; state weapons and state training licenses/certifications; proof of medical and drug clearance for each employee; documented proof of completed background investigation; other training documents; and time sheets.

Contractor shall provide a list of employees that will be assigned to the purchase order. The list shall include the employee's full name and badge number. The list shall be signed and validated by the supervisor responsible (or other authorized management official) for the employees. An updated list shall be provided each time there is a change to the employees assigned to this purchase order.

The Contractor shall provide monthly patrol/activity logs stating personnel, locations, details of contacts or incidents, investigative or prosecutorial work, and hours spent at particular locations.

Contractor shall provide administrative support for activities performed under this purchase order. This shall include, but not necessarily be limited to, budget, finance, safety, personnel, and coordination and supervision of work activities.

Temporary Removal

Reclamation may require the Contractor to temporarily and immediately remove any individual from duty who poses an imminent threat to safety of personnel or Government resources. The temporary removal shall remain in effect until the incident prompting removal has been resolved to the satisfaction of the Government. Once the incident has been resolved, the individual will either be allowed to return to performance on the purchase order or be permanently removed from performance on the purchase order as the Government deems appropriate. Temporary removal of any personnel member does not relieve the Contractor of any performance requirements or create an entitlement to an equitable adjustment. In the event of a temporary removal, the Contractor shall replace the removed officer with an officer that meets the requirements of the purchase order within twenty-four (24) hours of the removal.

Permanent Removal

Reclamation reserves the right to permanently exclude any individual from performance under this purchase order whose performance or appearance does not meet requirements or who fails to successfully pass background investigations. Such failures include but are not limited to: falsifying reports or statements; mishandling weapons; loss, destruction, or irresponsible use of Government equipment; or violation of When instructed, the Contractor shall immediately remove such individual in accordance with the Government's instructions. Permanent removal of any personnel member does not relieve the Contractor of any performance requirements or create an entitlement to an equitable adjustment. The Contractor shall not, without the Government's consent, reinstate under this purchase order, any employee who has been permanently removed.

C.2.4 Contractor Personnel, Disciplines, and Specialties

The Contractor shall accomplish the assigned work by employing and utilizing qualified personnel with appropriate combinations of education, training, and experience. The Contractor shall ensure the labor categories as defined in any applicable labor statute and/or collective bargaining agreement, labor rates, and man-hours utilized in the performance of this purchase order shall be the minimum necessary to accomplish the task. The Contractor shall provide the necessary resources and infrastructure to manage, perform, and administer the purchase order.

- C.2.4.1** The Contractor shall ensure that all employed officers performing services under this purchase order are sworn law enforcement officers and have met the same jurisdictional standards of training required of other sworn full-time officers. No reserve officers or volunteers, whether paid or unpaid, shall perform law enforcement services under this purchase order.
- C.2.4.2** Certification as an Oregon Police Officer pursuant to Oregon Administrative Rules (OAR) 259-008-0005 and Oregon Revised Statutes (ORS) 204.635 and 206.015. The OAR can be accessed at <https://secure.sos.state.or.us/oard/processLogin.action>. The ORS can be accessed at <https://www.oregon.gov/lcd/lar/pages/orss.aspx>.
- C.2.4.3** Trained and certified in the proper use of equipment to be used for this purchase order (example: firearm training).
- C.2.4.4** Ability to remain mentally alert at all times and capable of taking prompt, efficient, action to mitigate emergency situations such as fire, attempted theft, espionage, sabotage, and other acts detrimental to safeguarding Government personnel and property.
- C.2.4.5** Comply with the Lautenberg Amendment (18 U.S.C 922(d) (9) and (g) (9)). Persons prohibited by the Lautenberg Amendment, from possessing firearms cannot be employed under the purchase order. This includes persons who have been convicted of or charged with any felony or have been convicted of a misdemeanor crime of domestic violence, or who are subject to a court order that restrains the person from harassing, stalking, or threatening. The Contractor shall present to the Contracting Officer any known evidence of criminal misconduct by a prospective or current employee. The Contracting Officer, in his or her sole discretion, will determine whether such misconduct is a disqualification from employment under the purchase order. Personnel currently employed who are formally charged with a criminal act shall be suspended from working under the purchase order pending the outcome of charges.

C.2.5 Location and Hours of Work

The Contractor's primary areas of patrol will be the BOR lands in the Hermiston, Oregon vicinity. The Contractor's priority is performing deterrence patrols and addressing criminal activity in the areas outlined in the PWS, and responding to calls for service from the UFO. Reclamation expects the Contractor to be dedicated to the project and surrounding areas. The Contractor may set the patrol hours for its employed officers as long as they meet the contract requirements.

All work will be conducted in Umatilla County, Oregon. See Attachment A for a map of the facilities (larger versions are available upon request). The properties and facilities that will be patrolled are as follows:

- Oxbow Special Use Area, Hermiston, Oregon
- McKay Dam
- Cold Springs Dam
- Phase I Pumping Plant
- Phase I Canal
- Columbia River Pumping Plant
- Columbia-Cold Springs Canal
- Cold Springs Pumping Plant
- Stanfield Relift Pumping Plant
- Echo Pumping Plant
- West Extension Main Canal within Umatilla County
- Three Mile Falls Dam
- Hermiston Feed Canal
- Hermiston Maxwell Canal and Laterals
- Hermiston A-Line Canal

The Contractor PM will meet annually and/or as needed with Reclamation, at no additional cost to Reclamation, to address security issues and concerns associated with Reclamation facilities.

If a serious incident or an emergency occurs at a Umatilla Project facility, Reclamation may request additional Law Enforcement Officer (LEO) personnel to be posted at the facility. If this request is granted, any hours spent would be deducted from the annual patrol hours. Additional LEO personnel provided by the Contractor shall be to the same personnel requirements at the Contractor's regular personnel.

C.3 Performance Requirements

The following section specifies the Performance Objectives and Performance Elements for the contract.

C.3.1 Provide Deterrence Patrols of Umatilla Project federal facilities and lands.

Performance Standard

- a) Standard: Provide 780 hours of patrols, averaging 15 hours per week, and/or enforcement actions on Umatilla Project federal lands with an average of 10 hours per week dedicated exclusively to the Oxbow Special Use Area for deterrence patrols, actively searching trails for new or active illegal camps, contacting suspicious individuals, and enforcement actions. The remaining 5 hours per week are to be spent among the other Umatilla Project properties and facilities. Time spent performing ancillary activities, such as attending court, conducting investigations, or providing emergency management response shall be counted against the total number of patrol hours.

Acceptable Quality Level (AQL): With 100% accuracy, monthly patrol/activity logs and communications with the Umatilla Field Office show the patrol hours and locations requirements are being met. Logs for any given month shall be submitted by the 15th of the following month.

Deliverables: A01 Monthly Patrol/Activity Logs

C.3.2 Enforce State, County and Local Laws, as Applicable

Performance Standards

- a) Standard: Enforce State, County, and local laws, ordinances, rules and regulations (as applicable) and make non-federal arrests and issue citations on land administered by the Umatilla Project (proprietary jurisdiction) and provide police reports as needed. Aid prosecutors after an arrest to assist in achieving a conviction or other legal proceedings, for example by testifying in a courtroom.

AQL: With 100% accuracy, monthly patrol/activity logs and communications with the Umatilla Field Office show that the frequency of citations and arrests of people suspected of wrongdoing are providing active deterrence and consequences for criminal behavior on the properties administered by the Umatilla Field Office. Logs for any given month shall be submitted by the 15th of the following month.

Deliverables: A01 Monthly Patrol/Activity Logs,
A03 Police Reports

C.3.3 Provide Timely Response for Support or Investigation Requests

Performance Standards

- a) Standard: Contractor will provide a LEO onsite within 48 hours to direct support of

specific investigation requests by the UFO.

AQL: Contractor shall provide Reclamation a LEO onsite within 48 hours of the request to direct support of specific investigation requests by the UFO. Failure to provide a reasonable explanation of why the 48-hour standard was not met will be considered an unjustified incident. Only three (3) unjustified incidents are allowed per contract year.

C.3.4 Notify Reclamation of Property Damage or Safety-Related Matters

Performance Standard

- a) Standard: Notify the Reclamation's UFO of any property damage, suspicious incidents, or safety-related matters encountered while performing patrols.

AQL: Notifications shall be made to Reclamation's UFO within 12 hours after end of shift.

Deliverables: A01 Monthly Patrol/Activity Logs,
A03 Police Reports

C.3.5 Provide Ongoing Investigation, Prosecution, and Support Services for Addressing Criminal Activity

Performance Standards

- a) Standard: Contractor will provide on-going investigation, prosecution, and support services for instances of vandalism, break-ins, theft, public safety emergencies, and any other law enforcement-related activities occurring on properties in which the Reclamation has an interest (i.e., Oxbow Special Use Area, easements, rights-of-way, fee ownership, etc.).

AQL: Monthly patrol/activity logs and communications with the UFO show that the Contractor is actively pursuing investigations into unsolved criminal activity and pursuing prosecution for wrongdoing.

Deliverables: A01 Monthly Patrol/Activity Logs,
A03 Police Reports

C.3.6 Meetings

Performance Standards

- a) Standard: Contractor PM will meet with the UFO in person a minimum of annually and as needed, at no additional cost to Reclamation, to address security issues and concerns associated with Reclamation facilities.

AQL: Contractor will meet in person with the UFO a minimum of annually in the 45 days prior to the end of the contract year option year. Other requests by the UFO

for in-person meetings will be honored with 14 days of the request.

C.3.7 Documentation

Performance Standards

- a) Standard: The Contractor shall submit a log of monthly patrol activities to the UFO and the Contracting Officer's Representative within 14 days after the end of the month that includes documentation of patrol hours, times, locations of patrols or activities, personnel, citations, warnings, and incident reports resulting from patrol activities.
- b) Standard: The contractor will provide to the UFO and Contracting Officer's Representative annually by October 1st a summary of Reclamation-related activities from the previous Contract Year, including total number of patrol hours; total number of other hours charged to Reclamation; number of incidents and contacts by type; number of warnings, citations, and arrests; and recommendations of LEOs working under this agreement for ways to improve the protection of Reclamation resources and the public.
- c) The Contractor shall provide to the UFO copies of any police reports generated in the course of fulfilling this contract.

AQL:

- Contractor shall submit the monthly patrol activities within 14 days from the end of each month of services performed. A sample log is attached (see Attachment B, Excel document available upon request) with the minimum required information, but the Contractor may use any format.
- Contractor submits annual summary by October 1st each year.
- Contractor supplies police reports within 24 hours of their generation.

Deliverables: A01 Monthly Patrol/Activity Logs,
A02 Annual Report
A03 Police Reports

C.4 Special Requirements

This section describes the special requirements for this effort. The following sub-sections provide details of various considerations on this effort.

C.4.1 Security and Safety

The Contractor is responsible for its own employees' safety and shall ensure officers do not consume/intake alcoholic beverages or other substances that would impair/alter judgment or performance.

C.4.2 Evidence

Evidence or any property collected because of investigations occurring during the performance of the purchase order shall be processed in the same manner as State law requires for analogous investigations. Any evidence or property collected or held by the Contractor will be made available - to the extent allowed by law in keeping with legal

requirements governing chain of custody - to Reclamation officials upon request. Once the case is adjudicated, the Contractor shall process the property in accordance with State requirements.

C.5 Contractor Provided Equipment and Supplies

- C.5.1** The Contractor shall note that Department of the Interior prohibits the use of Tasers; while Tasers may be carried on the officer's duty gear, they shall not be used for this purchase order.
- C.5.2** Contractor personnel shall not carry equipment that he or she is not trained to use. The Contractor shall provide documentation showing that all the officers assigned to the purchase order have been trained on the equipment that they have been issued.
- C.5.3** Contractor personnel must wear a uniform and badge which clearly identifies them as an employee of the law enforcement agency.
- C.5.4** All personnel shall be fully equipped before assuming duties. The Contractor shall be responsible for maintenance of the weapons issued to its employees.
- C.5.5** The Contractor shall provide all required supplies and equipment for officers assigned to the purchase order, to include, but not limited to: law enforcement uniforms, patches, badges and ammunition.
- C.5.6** The Contractor shall provide certified law enforcement vehicles. Privately-owned vehicles shall not be used. Vehicles shall be equipped with technology capable of supporting report writing, and integrated public safety and computer-aided dispatch software.
- C.5.7** The Contractor shall supply any other supplies needed for the performance of the work under the purchase order.

C.6 Government Furnished Materials

The Contractor must safeguard keys and any other government property provided by Reclamation to the Contractor for performance under this purchase order.

C.7 Environmental Requirements

The Contractor shall comply with all applicable statutes and regulations as mandatory.

C.8 Applicable Directives

The contractor shall comply with all applicable statutes and directives as mandatory.

C.9 Quality

This section describes the Quality Control components for this effort. The following sub- sections provide details of various considerations on this effort.

C.9.1 Quality Control

The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services.

C.9.2 Quality Assurance Surveillance Plan (QASP)

The Government shall monitor the Contractor's performance under this purchase order in accordance with the Government's QASP. Reclamation has developed a QASP for the services required under this PWS. The QASP is not part of the PWS and is provided as information to the Contractor. The QASP is to be a living document that Reclamation can revise or modify, as circumstances warrant.

C.10 Performance Requirement Summary (PRS)

PWS Section	Standards/AQLs	Incentive/Remedy
C.3.1 Provide Deterrence Patrols of Umatilla Project federal facilities and lands.	Provide 780 hours of patrols, averaging 15 hours per week, and/or enforcement actions on Umatilla Project federal lands with an average of 10 hours per week dedicated exclusively to the Oxbow Special Use Area for deterrence patrols, actively searching trails for new or active illegal camps, contacting suspicious individuals, and enforcement actions. The remaining 5 hours per week are to be spent among the other Umatilla Project properties and facilities. Time spent performing ancillary activities, such as attending court, conducting investigations, or providing emergency management response shall be counted against the total number of patrol hours. AQL: With 100% accuracy, monthly patrol/activity logs and communications with the Umatilla Field Office show the patrol hours and locations requirements are being met. Logs for any given month shall be submitted by the 15th of the following month.	Percent invoice deduction at last invoice of the contract year commensurate with the percent of patrol hours not fulfilled.
C.3.2 Enforce State, County and Local Laws, as Applicable	Enforce State, County, and local laws, ordinances, rules and regulations and make non-federal arrests and issue citations on lands administered by the Umatilla Project (proprietary jurisdiction). Aid prosecutors after an arrest to assist in achieving a conviction or other legal proceedings, for example by testifying in a courtroom. With 100% accuracy, monthly patrol/activity logs and communications with the Umatilla Field Office show that the frequency of citations and arrests of people suspected of wrongdoing are providing active deterrence and consequences for criminal behavior on the properties administered by the Umatilla Field Office. Logs for any given month shall be submitted by the 15th of the following month.	See C.3.7 Documentation Incentive/Remedy
C.3.3 Provide Timely Response for Support or Investigation Requests	Contractor will provide a LEO onsite to direct support of specific investigation requests by the UFO. AQL: Contractor shall provide Reclamation a LEO onsite with 48 hours of request to direct support of specific investigation requests by the UFO.	After three (3) unjustified incidents, 5% invoice deduction for each request not fulfilled.
C.3.4 Notify Reclamation of Property Damage or Safety-Related Matters	Notify Reclamation's Umatilla Field Office of any property damage, suspicious incidents, or safety-related matters encountered while performing patrols. AQL: Notifications shall be made to Reclamation's Umatilla Field Office within 12-hours of shift end.	After three (3) unjustified incidents, 5% invoice deduction for each property damage or safety-related matter not reported.
C.3.5 Provide Ongoing Investigation, Prosecution, and Support Services for Addressing Criminal Activity	Contractor will provide on-going investigation, prosecution, and support services for instances of vandalism, break-ins, theft, public safety emergencies, and any other law enforcement-related activities occurring on properties in which the Reclamation has an interest (i.e., Oxbow Special Use Area, easements, rights-of-way, fee ownership, etc.). AQL: Monthly patrol/activity logs and communications with the Umatilla Field Office show that the Contractor is actively pursuing investigations into unsolved criminal activity and pursuing prosecution for wrongdoing.	See C.3.7 Documentation Incentive/Remedy
C.3.6 Meetings	Contractor will meet in person a minimum of annually and as needed with Reclamation, at no additional cost to Reclamation, to address security issues and concerns associated with Reclamation facilities. AQL: Contractor will meet in person with the Umatilla Field Office a minimum of annually in the 45 days prior to the end of the contract year option year. Other requests by the Umatilla Field Office for in-person meetings will be honored with 14 days of the request.	After three (3) unjustified incidents, 5% invoice deduction for each required meeting missed and/or each requested meeting not honored.

C.3.7 Documentation	A. The Contractor shall submit a log of monthly patrol activities to the Umatilla Field Office and the Contracting Officer’s Representative with 14 days after the end of the month that includes documentation of patrol hours, times, locations of patrols or activities, personnel, citations, warnings, and incident reports resulting from patrol activities. A sample log is attached (see Attachment B) with the minimum required information, but the Contractor may use any format. B. The contractor will provide annually by October 1st a summary of Reclamation-related activities from the previous Contract Year including total number of patrol hours; total number of other hours charged to Reclamation; number of incidents and contacts by type; number of warnings, citations, and arrests; and recommendations of LEOs working under this agreement for ways to improve the protection of Reclamation resources and the public. C. The Contractor shall provide to the Umatilla Field Office copies of any police reports generated in the course of fulfilling this contract. AQL: • Contractor shall submit the monthly patrol activities within 14 days from the end of each month of services performed. A sample log is attached (see Attachment B, Excel document available upon request) with the minimum required information, but the Contractor may use any format. • Contractor submits annual summary by October 1st each year. Contractor supplies police reports within 24 hours of their generation.	1% deduction for each late monthly log, police report, or annual report; 5% invoice deduction for each missing monthly log or annual report. The monthly log will be considered missing if not received within 30 days of the end of the month. The annual report will be considered missing if not received by November 1st of the new contract year.
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C.11 Deliverables

The Contractor shall provide deliverables as described in this PWS.

Number	Name	Frequency	Quantity
A01	Monthly Patrol/Activity Logs Provide monthly to the Umatilla Field Office patrol/activity logs for all time spent on UFO lands or working on UFO criminal matters. Logs should state personnel involved, locations, details of contacts or incidents, hours spent at particular locations, etc. Logs for any given month shall be submitted by the 15th of the following month.	Monthly	1 each to UFO and COR
A02	Annual Report The contractor will provide annually by October 1st a summary of Reclamation-relate activities from the previous Contract Year including total number of patrol hours; total number of other hours charged to Reclamation; number of incidents and contacts by type; number of warnings, citations, and arrests; and recommendations of LEOs working under this agreement for ways to improve the protection of Reclamation resources and the public.	Yearly	1 each to UFO and COR
A03	Police Reports Each officer shall complete a standard police report for arrests or significant incidents as per Contractor policy.	As-Needed	1 to UFO and COR

Attachment A: Maps Umatilla Field Office Properties for Patrol and Law Enforcement

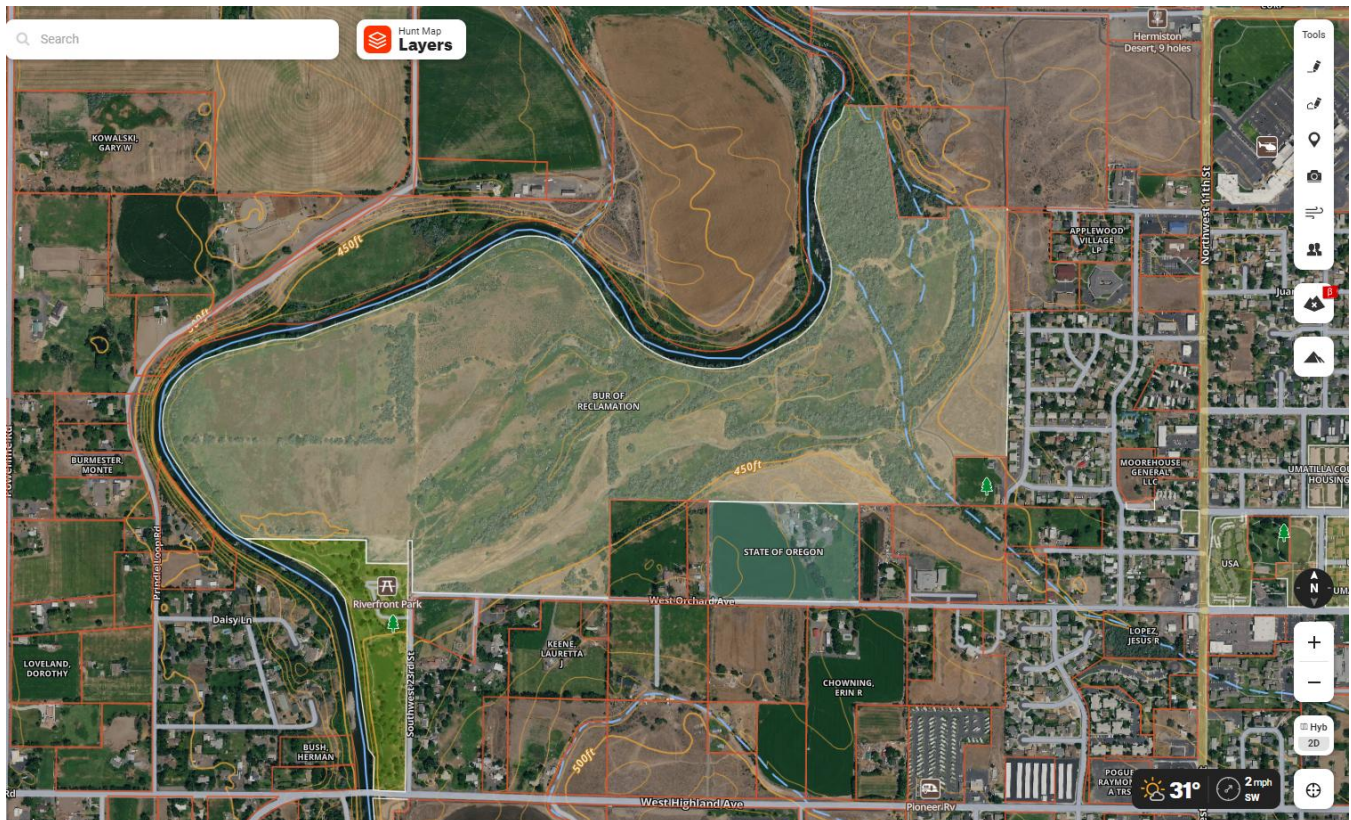


Figure 1 Oxbow Property boundary (Bureau of Reclamation)

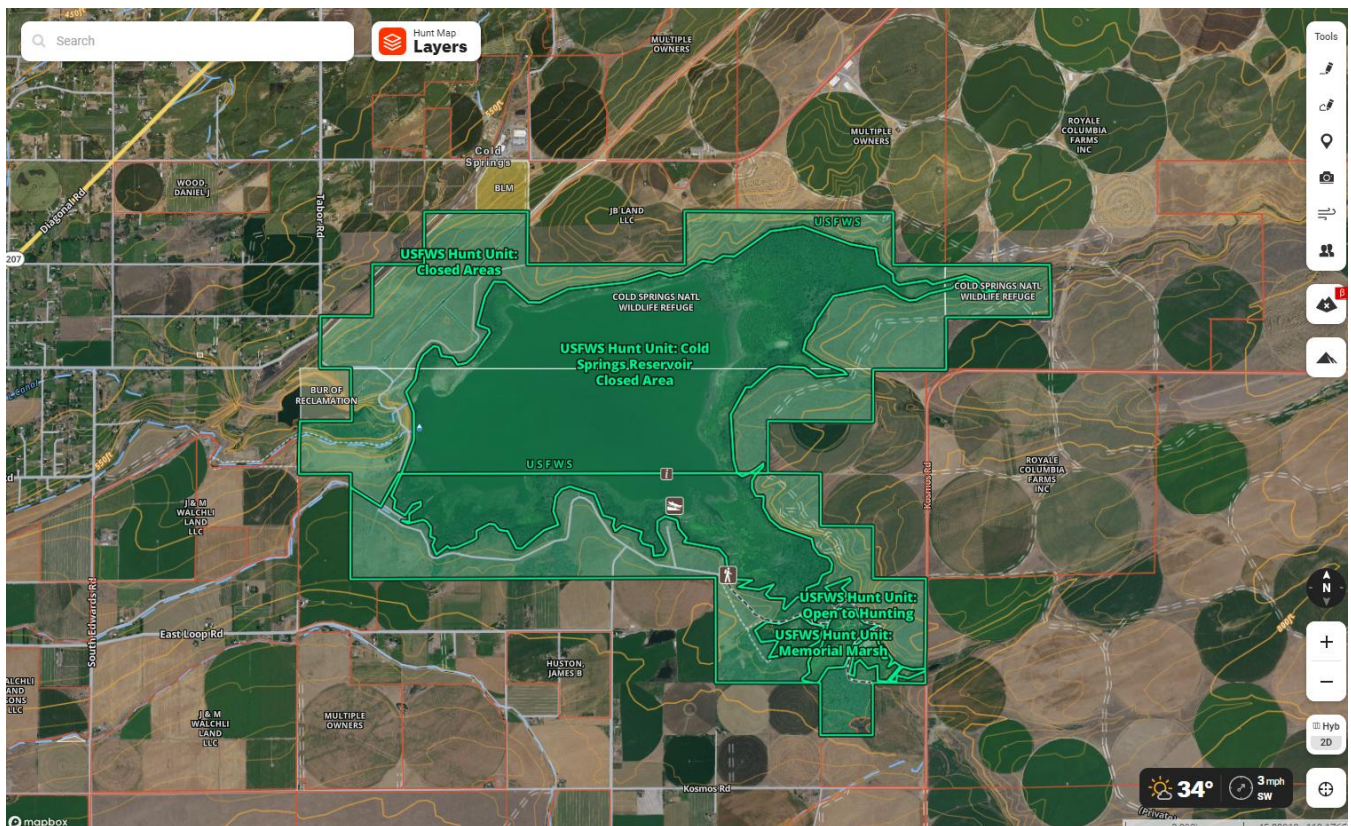


Figure 2 Cold Springs Reservoir boundary



Figure 3 McKay Dam, office, dam tender residence are within red boundary.



Figure 4 Phase I Canal, WEID Main Canal in Umatilla County, Phase I Pumping Plant, Three Mile Falls Dam



Figure 5 Columbia River Pumping Plant, Columbia-Cold Springs Canal, Cold Springs Pumping Plant, Cold Springs Dam



Figure 6 Cold Springs Dam, Cold Springs Pumping Plant, Feed Canal, A-Line Canal, Maxwell Canal, Stanfield Relift Pumping Plant, Echo Pumping Plant



Figure 7 Echo Pumping Plant and southern portion of Feed Canal

RECLAMATION
Managing Water in the West



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Attachment B: Sample Law Enforcement Monthly Log

April 2025												
Locations:	Enforcement Actions, Patrol Observations, Other work performed											
Oxbow Special Use Area												
Cold Springs Dam/Cold Springs Pumping Plant (CSPP)												
McKay Dam												
3-Mile Dam/ West Extension Main Canal												
Sand Station/Columbia River Pumping Plant												
Phase I PP												
Stanfield Pumping Plant (SRPP)/ Echo Pumping Plant												
Various Canals												
Locations:	Dates Worked / Hours Worked											
Oxbow Property	4/1	4/2	4/3	4/4	4/5	4/6	4/7	4/8	4/9	4/10	4/11	
	4/12	4/13	4/14	4/15	4/16	4/17	4/18	4/19	4/20	4/21	4/22	0.0
	4/23	4/24	4/25	4/26	4/27	4/28	4/29	4/30	5/1			0.0
												0.0
Other Properties	4/1	4/2	4/3	4/4	4/5	4/6	4/7	4/8	4/9	4/10	4/11	
	4/12	4/13	4/14	4/15	4/16	4/17	4/18	4/19	4/20	4/21	4/22	0.0
	4/23	4/24	4/25	4/26	4/27	4/28	4/29	4/30	5/1			0.0
												0.0
TOTAL Oxbow Hours	0.0											
TOTAL Other Properties	0.0											
Dates and Officers involved in patrolling												
Officer Name	Dates											
Officer Name	Dates											
Officer Name	Dates											
Officer Name	Dates											
Officer Name	Dates											

Clauses

52.212-4 CONTRACT TERMS AND CONDITIONS –COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (RFO DEVIATION MAR 2026)

---Addendum to 52.212-4---

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of the Interior Acquisition Regulation (48 CFR Chapter 14) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Federal Acquisition Regulation: <https://www.acquisition.gov/far>

Department of the Interior Acquisition Regulation: <https://www.acquisition.gov/diar>

(End of clause)

The following clauses are hereby incorporated by reference:

52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a). (NOV 2023)

52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)

52.204-13 -SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (RFO Deviation MAR 2026)

52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (RFO Deviation MAR 2026) (31 U.S.C. 6101 note).

52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (RFO Deviation MAR 2016).

52.222-3, Convict Labor (RFO Deviation MAR 2026) (E.O.11755).

52.222-19, Child Labor-Cooperation with Authorities and Remedies (RFO Deviation MAR 2026)

52.222-35, Equal Opportunity for Veterans (RFO Deviation MAR 2026) (38 U.S.C. 4212).

52.222-36, Equal Opportunity for Workers with Disabilities (RFO Deviation MAR 2026) (29 U.S.C. 793).

52.222-37, Employment Reports on Veterans (RFO Deviation MAR 2026) (38 U.S.C. 4212).

52.222-41, Service Contract Labor Standards (RFO Deviation MAR 2026) (41 U.S.C. chapter 67).

52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (RFO Deviation MAR 2026) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

52.222-50, Combating Trafficking in Persons (RFO Deviation MAR 2026) (22 U.S.C. chapter 78 and E.O. 13627).

52.222-54, Employment Eligibility Verification (RFO Deviation MAR 2026) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

52.222-62, Paid Sick Leave Under Executive Order 13706 (RFO Deviation MAR 226) (E.O. 13706).

52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).

52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct 2018) (31 U.S.C. 3332).

52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

52.233-3, Protest After Award (RFO DEVIATION MAR 2026) (31 U.S.C. 3553).

52.233-4, Applicable Law for Breach of Contract Claim (RFO DEVIATION MAR 2026) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

52.242-15 STOP-WORK ORDER (AUG 1989)

52.244-6 Subcontracts for Commercial Products and Commercial Services. (RFO DEVIATION MAR 2026)

The following clauses are in full text:

52.240-91 Security Prohibitions and Exclusions. (RFO DEVIATION MAR 2026)

(a) Definitions. As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

- (1) Defense articles or defense services included on the United States Munitions List set forth in the

International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the

equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

- (i) Of that equipment; or
 - (ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;
- (2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but
- (3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

- (1) Is developed or provided by a Kaspersky Lab-covered entity;
- (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or
- (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;
- (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance

of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) Prohibitions on providing or using specific products or services in performance of contract. Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) Procedures. The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any

unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) Exemptions, exceptions, and waivers. The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.

(1) Certain telecommunications and video surveillance equipment, systems, or services.

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Office of Foreign Assets Control Restrictions.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated

screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) Sudan prohibition. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) Iran prohibitions.

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) Governmentwide exclusion and removal orders.

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) Reasonable inquiry. The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) Removal of prohibited products and services. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) General report.

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at

<https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) New FASCSA orders report.

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

(i) Contract number and order number, if applicable;

(ii) Name of the covered article or source subject to a FASCSA order;

(iii) The specific FASCSA order the product or service does not comply with;

(iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of clause)

DIAR 1452.201-70 AUTHORITIES AND DELEGATIONS (SEP 2011)

- (a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.
- (b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.
- (c) The COR is not authorized to perform, formally or informally, any of the following actions:
- (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
 - (2) Waive or agree to modification of the delivery schedule;
 - (3) Make any final decision on any contract matter subject to the Disputes Clause;
 - (4) Terminate, for any reason, the Contractor's right to proceed;
 - (5) Obligate in any way, the payment of money by the Government.
- (d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.
- (e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.
- (f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.
- (g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of Clause)

DOI-AAAP-0028 ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS-INVOICE PROCESSING PLATFORM (IPP) (MAR 2023)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

'Payment request' means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Concurrent to submitting an invoice in IPP, the contractor may submit any supporting documentation to terry_mest@ios.doi.gov and bor-sha-Invoices@usbr.gov. Contractors are cautioned that supporting documentation e-mailed to the contracting officer and contract specialist must not conflict with the IPP submission. Conflicts between the IPP submission and supporting documentation may result in a delay in approval and/or rejection of submitted invoices.

When e-mailing supporting documentation, the subject line of the email shall be formatted as follows: Contract Number, Invoice Number, Contracting Officer's last name (e.g., 140R2018R00000_Invoice No. 1_Smith). The invoice shall be attached to the email and named using the following format: Contract Number, Contractor Name, Invoice Number, Invoice Amount (e.g., 140R2022R00000_World Test, Inc. - Inv. No. 1 - \$5,678). Invoices shall not include information that would compromise Personally Identifiable Information, such as full social security numbers, dates of birth, etc. The final invoice shall be submitted and will be approved in accordance with payment terms and conditions contained in the contract, after all, if any, settlement actions are complete. The contractor must clearly identify the last payment as the 'Final Invoice'.

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Local Clause)

(End of clause)

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 15 days of contract expiration.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 days before the contract expires; provided that the Government gives the Contractor a preliminary written notice

of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause. The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years.

(End of clause)

WBR 1452.201-80 CONTRACTING OFFICER'S REPRESENTATIVE'S AUTHORITIES AND LIMITATIONS -- BUREAU OF RECLAMATION (MAY 2018)

a) Performance of the work under this contract shall be subject to the technical direction of the Reclamation Contracting Officer's Representative (COR). The term "technical direction" is defined to include, without limitation:

(1) Inspecting and accepting or rejecting work performed under the contract.

(2) Representing the Government in technical phases of the work. The COR is responsible for the technical administration of the contract and will provide instructions and interpretations to the Contractor on all technical matters relating to the contract. The COR will supervise or oversee all Government technical and administrative personnel assigned to assist the COR.

(3) Reviewing and, where required by the contract, approving submittals of technical data, shop drawings, samples, literature, plans, or other data required to be delivered by the Contractor to the Government.

(b) The Contractor will receive a copy of the written COR designation from the Contracting Officer. It will specify the extent of the COR's authority to act on behalf of the Contracting Officer.

(c) Technical direction must be within the scope of work stated in the contract. Only the Contracting Officer is authorized to determine if a change is within the scope of the contract; therefore, the COR does not have the authority to, and may not, issue any technical direction that -

(1) Constitutes a direction of additional work outside the Contract requirements;

(2) Constitutes a change as defined in the contract clause entitled "Changes;"

(3) In any manner causes an increase or decrease in the total contract cost, or the time required for contract performance;

(4) Changes any of the expressed terms, conditions or specifications of the contract; or

(5) Interferes with the Contractor's right to perform the terms and conditions of the contract.

(d) All technical direction shall be issued in writing by the COR.

(e) The Contractor must proceed promptly with the performance of technical direction duly issued by the COR in the manner prescribed by this clause and within its authority under the provisions of this clause. If, in the opinion of the Contractor, any instruction or direction by the COR falls within one of the categories defined in (c)(1) through (c)(5) of this clause, the Contractor must not proceed and must notify

the Contracting Officer in writing within five (5) working days after receipt of any such instruction or direction and must request the Contracting Officer to modify the contract accordingly. Upon receiving the notification from the Contractor, the Contracting Officer must -

(1) Advise the Contractor in writing after receipt of the Contractor's letter that the technical direction is within the scope of the contract effort and does not constitute a change under the Changes clause of the contract; or

(2) Advise the Contractor that the Government will issue a written change order.

(f) A failure of the Contractor and Contracting Officer either to agree that the technical direction is within the scope of the contract or to agree upon the contract action to be taken with respect to the technical direction will be subject to the provisions of the clause entitled "Disputes."

(End of clause)

WBR 1452.223-81 SAFETY AND HEALTH -- BUREAU OF RECLAMATION (OCT 2022)

(a) The Contractor shall not require any person employed in the performance of this contract (including subcontracts) to work under conditions which are unsanitary, hazardous, or dangerous to an employee's health or safety.

(b) Contractor shall comply with the most current version of the Bureau of Reclamation's Reclamation Safety and Health Standards (RSHS) and, if incorporated, 52.236-13 Accident Prevention.

The RSHS manual shall be obtained at:

<http://www.usbr.gov/safety/rshs/index.html>

(c) Comply with the standards (29 CFR) issued by the Occupational Safety and Health Administration (OSHA), U.S. Department of Labor, www.osha.gov.

(d) In the event there is a conflict between the requirements contained in paragraphs (b) and (c) referenced herein, or in the Statement of Work (SOW) or Performance Work Statement (PWS), the more stringent requirement shall prevail.

(e) If required in the SOW or PWS, the Contractor shall submit a written proposed safety program as prescribed in the RSHS and the written specifications.

(f) The Contractor shall maintain an accurate record of and shall report to the Contracting Officer (or authorized representative) in the manner prescribed by the Contracting Officer, all cases of death, occupational diseases, or traumatic injury to employees or the public involved, and property damage in accordance with the RSHS and OSHA guidelines.

(g) If the contractor deems that an updated version of the RSHS constitutes a substantive change to the contract, affecting price or time (or both), the contractor may request a contract modification in accordance with the terms of the contract.

(End of clause)

WBR 1452.237-80 SECURITY REQUIREMENTS -- BUREAU OF RECLAMATION (MAR 2022)

(a) General Security Requirements:

(1) This clause addresses security requirements, including general procedural requirements, information security requirements, contractor employee suitability requirements, identification card requirements, site security requirements, vessel exclusion barriers, and information technology security requirements. Within this clause, COR means Contracting Officer's Representative. If there is no COR appointed and identified to the Contractor, the term instead will mean the Program Manager or any other authorized individual responsible for technical oversight under the contract. "Work site" means the Government facility, office, construction site, and any other area within the Government office or facility that the Contractor must access to accomplish work under this contract.

(2) The work performed under this contract shall only be accomplished by individuals (in the employment of the Contractor or any subcontractors) whose conduct and behavior is consistent with the efficiency of the Federal Service and the requirements of this contract, and who are acceptable to the contracting officer. If Reclamation finds a Contractor employee to be unsuitable or unfit for his or her assigned duties, the contracting officer will direct the Contractor to remove the individual from the contract and access to the Federal facility at which the contract activities are occurring.

(3) The Contractor's employees governed by this contract may need access to sensitive information and/or sensitive areas. The Federal Government (Government) reserves the right, in its sole discretion, to determine suitability of Contractor personnel and deny access to any sensitive information or project specific area to any personnel for any cause.

(4) The Contractor is responsible for informing and ensuring compliance by its employees with any applicable security procedures of the Government facility where work may be performed under this contract.

(5) Any Contractor employee that will have access to a Federally-controlled facility or information system will be required to have a Government-issued identification card, consisting of a Personal Identity Verification (PIV) Card, a temporary identification card, or a visitor badge. (Note: within the Department of the Interior this card is known as a DOI Access Card.) During performance of the contract, the Contractor shall keep the COR apprised of any changes in personnel, or changes in personnel access or duration, to ensure that performance is not delayed by compliance with credentialing processes.

(6) A Contractor employee will not be provided access to a Government facility or information system until a Government PIV Card, temporary identification card, or visitor identification badge has been issued to the Contractor employee. For those individuals that will be receiving a PIV Card, the Government may, at its discretion, issue a temporary identification card or visitor identification badge after the electronic background investigation forms have been received and the investigation is initiated.

(7) All Contractor employees shall access the facility via the facility's entry screening system and visibly display the Government-issued PIV Card, temporary identification card, or visitor identification badge at all times. Contractor employees must visibly wear the Government-issued identification card at all times they are on Government facilities. Contractor employees are responsible for the safekeeping of all Government-issued identification cards, whether on-site or off-site. Cards that have been lost, damaged, or stolen must be reported to the COR and DOI Access Sponsor immediately, but not later than within 24 hours. The Contractor shall return all identification cards and card keys and any other Government property and information upon completion of performance or when personnel depart permanently or for a period of 7 days or more. The Contractor may be required to turn in access control cards or identification cards on a daily basis.

(8) Misuse or loss of access control or identification cards, or failure to comply with required surrender

of such cards may, at Government discretion, result in Contractor personnel being denied access to the work site, at no cost to Government. The Contractor may be charged up to \$500 for each occurrence for any required replacement of Government-issued access control or identification cards due to loss or misuse. At the end of contract performance, or when a Contractor employee is no longer working under this contract, the Contractor shall ensure that all access control and identification cards are returned to the COR.

(9) All Contractor personnel, including subcontractor personnel, with access to the work site shall be U.S. citizens or foreign individuals legally residing in, or legally admitted to, the U.S. For all non-U.S. citizens working under this contract, irrespective of length of time working on the contract, the Contractor shall provide to the COR, legible and valid copies of the individual's passport and visa (unless individual is on the Visa Waiver Program) a minimum of 14 calendar days prior to beginning work or arriving at the facility. A driver's license is not acceptable identification. In addition, a completed form I-94 shall be submitted to the COR upon the individual's arrival at the work facility and prior to beginning work.

(10) The Contractor shall report all contacts with entities, individuals, and counsel/representatives (including foreign entities and foreign nationals) who seek in any way to obtain unauthorized access to sensitive information or areas. The Contractor shall report any violations of contract provisions, laws, executive orders, regulations, and guidance to the contracting officer. The Contractor shall report any information raising a doubt as to whether an individual's eligibility for continued employment or access to sensitive information is consistent with the interests of National Security and the Public Trust.

(11) Unsanctioned, negligent, or willful inappropriate action on the part of the Contractor (or its employees) may result in termination of the contract or removal of some Contractor employees from Reclamation facilities at no cost to the Government. These actions include, but are not limited to, exploration of a sensitive system and/or information, introduction of unauthorized and/or malicious software, inappropriate release of sensitive information, or failure to follow prescribed access control policies and/or security procedures. Failure to comply with Reclamation policies, procedures, or other published security requirements may result in termination of the contract or removal of some contracted employees from Reclamation buildings and/or facilities at no cost to the Government.

(12) All provisions of this clause shall equally apply to all subcontractors. The Contractor shall incorporate the substance of this clause in all subcontracts.

(13) These security requirements apply to all sections of this Contract including Contract Drawings and other Contract Specifications as applicable. Related documents include other general provisions of Construction or Operations and Maintenance type Contracts, including FAR clauses by reference or as amended by related documents.

(b) Information Security Requirements.

(1) Sensitive Information. The term "sensitive information" means any information which warrants a degree of protection and administrative control as defined by Reclamation or that meets the criteria for exemption from public disclosure set forth under Sections 552 and 552a of Title 5, United States Code: the Freedom of Information Act and the Privacy Act. Sensitive information is generally categorized as CONTROLLED UNCLASSIFIED INFORMATION (CUI), but in some cases may include other unclassified information. (The protection of National Security information is beyond the scope of this clause. If any work on National Security information is required under this contract, it is addressed under other contract clauses.) The Contractor shall protect this type of information from unauthorized release into public domain, or to unauthorized persons, organizations, or subcontractors. Information which, either alone or in aggregate, is deemed sensitive by Reclamation shall be handled and protected

in accordance with Reclamation Directives and Standards SLE 02-01 Identifying and Safeguarding Controlled Unclassified Information (CUI), which is available from the COR or at <http://www.usbr.gov/recman/DandS.html#sle>.

(i) Any Government-furnished information or material does not become the property of the Contractor and may be withdrawn at any time. Upon expiration or termination of the contract, all documents released to the Contractor and any material created using data from such documents shall be returned to the COR for final disposition. Government-furnished information residing on any electronic systems (laptops, servers, desktops, media) shall be deleted from those systems using a COR-approved data erasure solution. Only with prior authorization from the contracting officer may the Contractor retain the material. The Contractor or subcontractor shall not disclose or release the materials provided to the Contractor to any individuals of the Contractor's organization not directly engaged in providing services under the contract or that do not have a valid need-to-know. All technical data provided to the Contractor by the Government shall be protected from public or private disclosure in accordance with the markings printed on them. All other information relating to the items to be delivered or the services to be performed under this contract shall not be disclosed by any means without prior approval of the contracting officer. Prohibited dissemination or disclosure includes, but is not limited to: permitting access to such information by foreign nationals or by immigrant aliens who may be employed by the Contractor, publication of technical or scientific papers, advertising, disclosure to Contractor staff not investigated and deemed acceptable at the appropriate information sensitivity level, and any other public release. The Contractor shall maintain, and furnish upon request of the contracting officer, records of the names of individuals who have access to sensitive material in its custody and the sensitive material to which the individuals had access. All questions regarding information security, access, and control shall be referred to the COR.

(ii) The Contractor shall not release to anyone outside the Contractor's organization any sensitive, or otherwise protected information, regardless of medium in which it is contained (for example, film, tape, document, electronic), pertaining to any part of this contract or any Reclamation program or activity, unless the contracting officer has given prior written approval. This includes, but is not limited to, news releases, marketing promotions, articles, interviews, reports, social media posts, and any other media releases. Requests for approval shall identify the specific information to be released, the medium to be used, the purpose for the release, and a description of the need-to-know. The Contractor shall submit its request to the contracting officer ten business days before the proposed date for release. Subcontractors shall submit requests for authorization to release through the prime Contractor to the contracting officer.

(iii) The Contractor shall notify the COR immediately when known or suspected loss/compromise of sensitive information or other documents, notes, drawings, sketches, reports, photographs, exposed film or similar information which may affect the security interests of Government has occurred. This requirement extends to employees and other personnel working on behalf of the Contractor, and expands responsibility to include prompt reporting of security issues, including observed or subsequently discovered efforts by unauthorized persons to gain unauthorized access to sensitive information.

(2) Classified Information.

(i) The disclosure of U.S. Government documents by third parties can result in damage to our national security. While this contract may not deal directly with classified information, each contractor is obligated to protect classified information pursuant to all applicable laws and to use Government information technology systems in accordance with agency procedures so that the

integrity of such systems is not compromised.

(ii) Unauthorized disclosures of classified documents (whether in print, on a blog, or on websites, or other electronic or non-electronic media) do not alter the documents' classified status or automatically result in declassification of the documents. To the contrary, classified information, whether or not already posted on public websites or disclosed to the media, remains classified, and must be treated as such by Federal employees and contractors, until it is declassified by an appropriate U.S. Government authority. Executive Order 13526, Classified National Security Information (December 29, 2009), Section 1.1.(c) states, "Classified Information shall not be declassified automatically as a result of any unauthorized disclosure of identical or similar information." Although the Department has taken steps to prevent access to publicly disclosed classified materials from Departmental computers, it is important to understand our continuing duties and responsibilities in this regard.

(iii) Contractors (which include all employees of the contractor, as well as subcontractors and its employees performing work for the contractor) are reminded of the following obligations with respect to the treatment of classified information and the use of unclassified government information technology systems:

(iv) The contractor shall not, while using unclassified Government computers or other devices (such as phones or tablets) access documents that are marked classified (including classified documents made publicly available by a third party), as doing so risks that material still classified will be placed onto unclassified systems. This requirement does not restrict contractor access to unclassified, publicly available news reports (and other unclassified material) that may in turn discuss classified material, as distinguished from access to underlying documents that themselves are marked classified (including if the underlying classified documents are available on public web sites or otherwise in the public domain).

(v) For contracts that require access to classified information, the contractor is responsible for obtaining the required national security clearance through the Department of the Defense National Industrial Security Program Operating Manual (NISPOM). Any classified contracts will be coordinated through the Reclamation Chief Security Officer, or for IT requirements, the Bureau Chief Information Security Officer. No contractor shall access classified information unless proper clearances have been obtained and transmitted to Reclamation. For further information, refer to 443 DM 1 or DOD NISPOM 5220.22-M dated February 28, 2006 (incorporating change 2 dated May 18, 2016).

(vi) Classified information shall not be removed from official premises.

(vii) Classified information shall not be disclosed without proper authorization.

- (c) Reserved
- (d) Reserved
- (e) Reserved
- (f) Reserved

(End of clause)

WBR 1452.242-80 POSTAWARD CONFERENCE -- BUREAU OF RECLAMATION (MAR 2022)

- (a) Prior to the contractor starting work, a postaward conference (as described in FAR Subpart 42.5), will be convened by the contracting activity or contract administration office. The contractor's project manager

shall attend the conference. If the contract involves subcontractors, a representative of each major subcontractor is also required to attend.

(b) The conference will be held at a time and place agreed upon by Reclamation and contractor.

(c) The contracting officer and the contractor will agree to the date and time of the conference after award of the contract. In event of a conflict in schedules, the contracting officer shall establish the date for the conference.

(d) The contractor shall not be entitled to the reimbursement any costs associated with attendance at the conference beyond the agreed-to contract price.

(End of clause)

--- End of Addendum to 52.212-4---

52.223-23 SUSTAINABLE PRODUCTS AND SERVICES [DEVIATION FEB 2025]

(a) *Definitions.* As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. (7 U.S.C. 8101) (7 CFR 3201.2 [7 CFR Part 4270.2]).

Recovered material means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process. (42 U.S.C. 6903).

Sustainable products and services means ~~products and services that are subject to and meet the following applicable statutory mandates and directives for purchasing:~~

~~(1) Statutory purchasing programs.~~

~~(i)~~ [(1)] Products containing recovered material designated by the U.S. Environmental Protection Agency (EPA) under the Comprehensive Procurement Guidelines (42 U.S.C. 6962) (40 CFR part 247) (<https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products>).

~~(ii)~~ [(2)] Energy- and water-efficient products that are ENERGY STAR® certified or Federal Energy Management Program (FEMP)-designated products (42 U.S.C. 8259b) (10 CFR part 436, subpart C) (<https://www.energy.gov/eere/femp/search-energy-efficient-products> and <https://www.energystar.gov/products?s=mega>).

~~(iii)~~ [(3)] Biobased products meeting the content requirement of the USDA under the BioPreferred® program (7 U.S.C. 8102) (7 CFR part 3201-[7CFR part 4270]) (<https://www.biopreferred.gov>).

~~(iv)~~ [(4)] Acceptable chemicals, products, and manufacturing processes listed under EPA's Significant New Alternatives Policy (SNAP) program, which ensures a safe and smooth transition away from substances that contribute to the depletion of stratospheric ozone (42 U.S.C. 76711) (40 CFR part 82, subpart G) (<https://www.epa.gov/snap>).

~~(2) Required EPA purchasing programs.~~

~~(i) WaterSense®-labeled (water efficient) products and services (<https://www.epa.gov/>~~

~~watersense/watersense-products).~~

~~(ii)Safer Choice certified products (products that contain safer chemical ingredients)-~~

~~(<https://www.epa.gov/saferchoice/products>).~~

~~(iii)Product and services that meet EPA Recommendations of Specifications, Standards, and Ecolabels in effect as of October 2023 (<https://www.epa.gov/greenerproducts/recommendations-specifications-standards-and-ecolabels-federal-purchasing>).~~

(b)*Requirements.*

(1)The sustainable products and services, including the purchasing program and type of product or service, that are applicable to this contract, and any products or services that are not subject to this clause, will be set forth in the statement of work or elsewhere in the contract.

(2)The Contractor shall ensure that the sustainable products and services required by this contract are—

(i)Delivered to the Government;

(ii)Furnished for use by the Government;

(iii)Incorporated into the construction of a public building or public work; and

(iv)Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract (versus costs which are normally applied to the Contractor's general and administrative expenses or indirect costs). This includes services performed by contractors performing management and operation of Government-owned facilities to the same extent that, at the time of award, an agency would be required to comply if an agency operated or supported the facility.

~~(3)~~

~~(i)Except as provided in paragraph (b)(3)(ii) of this clause, sustainable products and services must meet the applicable standards, specifications, or other program requirements at time of quote or offer submission; and~~

~~(ii)Sustainable products and services must meet the EPA Recommendations of Specifications, Standards, and Ecolabels in effect as of October 2023.~~

(c)*Resource.* The Green Procurement Compilation (GPC) available at <https://sftool.gov/greenprocurement> provides a comprehensive list of sustainable products and services and sustainable acquisition guidance. The Contractor should review the GPC when determining which [statutory] purchasing programs apply to a specific product or service.

End of clause

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director	Division of Wage Determinations	Wage Determination No.: 2015-5589 Revision No.: 30 Date Of Last Revision: 12/03/2025

State: Oregon

Area: Oregon Counties of Baker, Grant, Harney, Malheur, Morrow, Umatilla,
Union, Wallowa

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		18.04
01012 - Accounting Clerk II		20.25
01013 - Accounting Clerk III		22.65
01020 - Administrative Assistant		31.80
01035 - Court Reporter		21.30
01041 - Customer Service Representative I		16.33
01042 - Customer Service Representative II		17.82
01043 - Customer Service Representative III		20.00
01051 - Data Entry Operator I		17.62
01052 - Data Entry Operator II		19.23
01060 - Dispatcher, Motor Vehicle		21.19
01070 - Document Preparation Clerk		16.97
01090 - Duplicating Machine Operator		16.97
01111 - General Clerk I		17.08
01112 - General Clerk II		18.63
01113 - General Clerk III		20.91
01120 - Housing Referral Assistant		23.74
01141 - Messenger Courier		17.81
01191 - Order Clerk I		15.55
01192 - Order Clerk II		16.97
01261 - Personnel Assistant (Employment) I		18.06
01262 - Personnel Assistant (Employment) II		20.20
01263 - Personnel Assistant (Employment) III		22.53
01270 - Production Control Clerk		26.54
01290 - Rental Clerk		21.82
01300 - Scheduler, Maintenance		19.04
01311 - Secretary I		19.04
01312 - Secretary II		21.30
01313 - Secretary III		23.74
01320 - Service Order Dispatcher		20.30
01410 - Supply Technician		31.80
01420 - Survey Worker		21.30
01460 - Switchboard Operator/Receptionist		18.28
01531 - Travel Clerk I		16.97
01532 - Travel Clerk II		19.04
01533 - Travel Clerk III		21.30
01611 - Word Processor I		16.97
01612 - Word Processor II		19.04
01613 - Word Processor III		21.30
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass		22.94

05010 - Automotive Electrician	21.51
05040 - Automotive Glass Installer	20.19
05070 - Automotive Worker	20.19
05110 - Mobile Equipment Servicer	17.52
05130 - Motor Equipment Metal Mechanic	22.83
05160 - Motor Equipment Metal Worker	20.19
05190 - Motor Vehicle Mechanic	22.83
05220 - Motor Vehicle Mechanic Helper	16.30
05250 - Motor Vehicle Upholstery Worker	18.85
05280 - Motor Vehicle Wrecker	20.19
05310 - Painter, Automotive	21.51
05340 - Radiator Repair Specialist	20.19
05370 - Tire Repairer	19.75
05400 - Transmission Repair Specialist	22.83
07000 - Food Preparation And Service Occupations	
07010 - Baker	17.23
07041 - Cook I	18.01
07042 - Cook II	20.76
07070 - Dishwasher	15.46
07130 - Food Service Worker	16.19
07210 - Meat Cutter	20.26
07260 - Waiter/Waitress	14.51
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	23.57
09040 - Furniture Handler	14.80
09080 - Furniture Refinisher	23.57
09090 - Furniture Refinisher Helper	17.79
09110 - Furniture Repairer, Minor	20.65
09130 - Upholsterer	23.57
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	17.55
11060 - Elevator Operator	17.89
11090 - Gardener	23.74
11122 - Housekeeping Aide	17.89
11150 - Janitor	17.89
11210 - Laborer, Grounds Maintenance	18.61
11240 - Maid or Houseman	16.68
11260 - Pruner	17.19
11270 - Tractor Operator	21.95
11330 - Trail Maintenance Worker	18.61
11360 - Window Cleaner	19.25
12000 - Health Occupations	
12010 - Ambulance Driver	21.91
12011 - Breath Alcohol Technician	31.81
12012 - Certified Occupational Therapist Assistant	43.65
12015 - Certified Physical Therapist Assistant	35.26
12020 - Dental Assistant	24.14
12025 - Dental Hygienist	49.25
12030 - EKG Technician	48.21
12035 - Electroneurodiagnostic Technologist	48.21
12040 - Emergency Medical Technician	21.91
12071 - Licensed Practical Nurse I	28.44
12072 - Licensed Practical Nurse II	31.81
12073 - Licensed Practical Nurse III	35.48
12100 - Medical Assistant	21.75
12130 - Medical Laboratory Technician	37.27
12160 - Medical Record Clerk	26.14
12190 - Medical Record Technician	29.24
12195 - Medical Transcriptionist	28.44
12210 - Nuclear Medicine Technologist	69.92
12221 - Nursing Assistant I	15.77
12222 - Nursing Assistant II	17.75
12223 - Nursing Assistant III	19.37
12224 - Nursing Assistant IV	21.74
12235 - Optical Dispenser	20.98

12236 - Optical Technician	28.44
12250 - Pharmacy Technician	23.11
12280 - Phlebotomist	20.41
12305 - Radiologic Technologist	44.76
12311 - Registered Nurse I	29.51
12312 - Registered Nurse II	36.10
12313 - Registered Nurse II, Specialist	36.10
12314 - Registered Nurse III	43.68
12315 - Registered Nurse III, Anesthetist	43.68
12316 - Registered Nurse IV	52.36
12317 - Scheduler (Drug and Alcohol Testing)	39.41
12320 - Substance Abuse Treatment Counselor	28.98
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	22.42
13012 - Exhibits Specialist II	27.79
13013 - Exhibits Specialist III	33.99
13041 - Illustrator I	22.42
13042 - Illustrator II	27.79
13043 - Illustrator III	33.99
13047 - Librarian	30.76
13050 - Library Aide/Clerk	15.35
13054 - Library Information Technology Systems Administrator	27.79
13058 - Library Technician	21.72
13061 - Media Specialist I	20.04
13062 - Media Specialist II	22.44
13063 - Media Specialist III	25.00
13071 - Photographer I	18.05
13072 - Photographer II	20.20
13073 - Photographer III	25.01
13074 - Photographer IV	30.59
13075 - Photographer V	37.02
13090 - Technical Order Library Clerk	19.02
13110 - Video Teleconference Technician	19.46
14000 - Information Technology Occupations	
14041 - Computer Operator I	24.79
14042 - Computer Operator II	27.72
14043 - Computer Operator III	30.90
14044 - Computer Operator IV	34.36
14045 - Computer Operator V	38.04
14071 - Computer Programmer I	(see 1) 22.85
14072 - Computer Programmer II	(see 1)
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	(see 1)
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	24.79
14160 - Personal Computer Support Technician	34.36
14170 - System Support Specialist	38.04
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	34.26
15020 - Aircrew Training Devices Instructor (Rated)	41.45
15030 - Air Crew Training Devices Instructor (Pilot)	49.68
15050 - Computer Based Training Specialist / Instructor	34.26
15060 - Educational Technologist	37.11
15070 - Flight Instructor (Pilot)	49.68
15080 - Graphic Artist	31.46
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	49.68
15086 - Maintenance Test Pilot, Rotary Wing	49.68
15088 - Non-Maintenance Test/Co-Pilot	49.68
15090 - Technical Instructor	28.36
15095 - Technical Instructor/Course Developer	32.54
15110 - Test Proctor	21.49
15120 - Tutor	21.49

16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	
16010 - Assembler	18.60
16030 - Counter Attendant	18.60
16040 - Dry Cleaner	21.25
16070 - Finisher, Flatwork, Machine	18.60
16090 - Presser, Hand	18.60
16110 - Presser, Machine, Drycleaning	18.60
16130 - Presser, Machine, Shirts	18.60
16160 - Presser, Machine, Wearing Apparel, Laundry	18.60
16190 - Sewing Machine Operator	22.15
16220 - Tailor	23.03
16250 - Washer, Machine	19.48
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	31.30
19040 - Tool And Die Maker	38.71
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	24.59
21030 - Material Coordinator	26.54
21040 - Material Expediter	26.54
21050 - Material Handling Laborer	17.75
21071 - Order Filler	18.17
21080 - Production Line Worker (Food Processing)	24.59
21110 - Shipping Packer	22.11
21130 - Shipping/Receiving Clerk	22.11
21140 - Store Worker I	17.80
21150 - Stock Clerk	21.59
21210 - Tools And Parts Attendant	24.59
21410 - Warehouse Specialist	24.59
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	35.00
23019 - Aircraft Logs and Records Technician	27.43
23021 - Aircraft Mechanic I	33.22
23022 - Aircraft Mechanic II	35.00
23023 - Aircraft Mechanic III	36.94
23040 - Aircraft Mechanic Helper	23.57
23050 - Aircraft, Painter	31.30
23060 - Aircraft Servicer	27.43
23070 - Aircraft Survival Flight Equipment Technician	31.30
23080 - Aircraft Worker	29.39
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	29.39
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	33.22
23110 - Appliance Mechanic	31.30
23120 - Bicycle Repairer	25.50
23125 - Cable Splicer	58.77
23130 - Carpenter, Maintenance	28.88
23140 - Carpet Layer	29.39
23160 - Electrician, Maintenance	38.62
23181 - Electronics Technician Maintenance I	36.09
23182 - Electronics Technician Maintenance II	38.48
23183 - Electronics Technician Maintenance III	40.82
23260 - Fabric Worker	27.43
23290 - Fire Alarm System Mechanic	33.22
23310 - Fire Extinguisher Repairer	25.50
23311 - Fuel Distribution System Mechanic	33.22
23312 - Fuel Distribution System Operator	25.50
23370 - General Maintenance Worker	23.38
23380 - Ground Support Equipment Mechanic	33.22
23381 - Ground Support Equipment Servicer	27.43
23382 - Ground Support Equipment Worker	29.39
23391 - Gunsmith I	25.50
23392 - Gunsmith II	29.39
23393 - Gunsmith III	33.22
23410 - Heating, Ventilation And Air-Conditioning	31.27

Mechanic	
23411 - Heating, Ventilation And Air Contidioning	32.95
Mechanic (Research Facility)	
23430 - Heavy Equipment Mechanic	31.02
23440 - Heavy Equipment Operator	29.40
23460 - Instrument Mechanic	33.22
23465 - Laboratory/Shelter Mechanic	31.30
23470 - Laborer	17.75
23510 - Locksmith	31.30
23530 - Machinery Maintenance Mechanic	32.37
23550 - Machinist, Maintenance	29.70
23580 - Maintenance Trades Helper	18.00
23591 - Metrology Technician I	33.22
23592 - Metrology Technician II	35.00
23593 - Metrology Technician III	36.94
23640 - Millwright	33.22
23710 - Office Appliance Repairer	31.30
23760 - Painter, Maintenance	22.53
23790 - Pipefitter, Maintenance	33.49
23810 - Plumber, Maintenance	31.55
23820 - Pneudraulic Systems Mechanic	33.22
23850 - Rigger	33.22
23870 - Scale Mechanic	29.39
23890 - Sheet-Metal Worker, Maintenance	33.22
23910 - Small Engine Mechanic	29.39
23931 - Telecommunications Mechanic I	33.90
23932 - Telecommunications Mechanic II	35.72
23950 - Telephone Lineman	30.20
23960 - Welder, Combination, Maintenance	23.98
23965 - Well Driller	33.22
23970 - Woodcraft Worker	33.22
23980 - Woodworker	25.50
24000 - Personal Needs Occupations	
24550 - Case Manager	23.99
24570 - Child Care Attendant	16.49
24580 - Child Care Center Clerk	20.56
24610 - Chore Aide	17.79
24620 - Family Readiness And Support Services	23.99
Coordinator	
24630 - Homemaker	23.99
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	30.67
25040 - Sewage Plant Operator	27.23
25070 - Stationary Engineer	30.67
25190 - Ventilation Equipment Tender	21.75
25210 - Water Treatment Plant Operator	27.23
27000 - Protective Service Occupations	
27004 - Alarm Monitor	27.46
27007 - Baggage Inspector	19.03
27008 - Corrections Officer	40.24
27010 - Court Security Officer	31.47
27030 - Detection Dog Handler	22.01
27040 - Detention Officer	40.24
27070 - Firefighter	25.75
27101 - Guard I	19.03
27102 - Guard II	22.01
27131 - Police Officer I	35.08
27132 - Police Officer II	38.98
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	20.34
28042 - Carnival Equipment Repairer	22.01
28043 - Carnival Worker	16.13
28210 - Gate Attendant/Gate Tender	21.89
28310 - Lifeguard	15.54
28350 - Park Attendant (Aide)	24.48

28510 - Recreation Aide/Health Facility Attendant	17.87
28515 - Recreation Specialist	30.33
28630 - Sports Official	19.50
28690 - Swimming Pool Operator	25.37
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	30.59
29020 - Hatch Tender	30.59
29030 - Line Handler	30.59
29041 - Stevedore I	28.40
29042 - Stevedore II	32.76
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	46.07
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	31.77
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	34.99
30021 - Archeological Technician I	16.14
30022 - Archeological Technician II	18.43
30023 - Archeological Technician III	24.07
30030 - Cartographic Technician	25.48
30040 - Civil Engineering Technician	36.30
30051 - Cryogenic Technician I	21.24
30052 - Cryogenic Technician II	23.46
30061 - Drafter/CAD Operator I	16.14
30062 - Drafter/CAD Operator II	18.43
30063 - Drafter/CAD Operator III	20.55
30064 - Drafter/CAD Operator IV	24.77
30081 - Engineering Technician I	16.35
30082 - Engineering Technician II	18.35
30083 - Engineering Technician III	20.53
30084 - Engineering Technician IV	25.43
30085 - Engineering Technician V	31.11
30086 - Engineering Technician VI	38.46
30090 - Environmental Technician	22.34
30095 - Evidence Control Specialist	19.18
30210 - Laboratory Technician	23.90
30221 - Latent Fingerprint Technician I	21.24
30222 - Latent Fingerprint Technician II	23.46
30240 - Mathematical Technician	22.36
30361 - Paralegal/Legal Assistant I	21.08
30362 - Paralegal/Legal Assistant II	26.13
30363 - Paralegal/Legal Assistant III	31.94
30364 - Paralegal/Legal Assistant IV	38.64
30375 - Petroleum Supply Specialist	23.46
30390 - Photo-Optics Technician	22.36
30395 - Radiation Control Technician	23.46
30461 - Technical Writer I	22.20
30462 - Technical Writer II	27.15
30463 - Technical Writer III	32.85
30491 - Unexploded Ordnance (UXO) Technician I	29.28
30492 - Unexploded Ordnance (UXO) Technician II	35.43
30493 - Unexploded Ordnance (UXO) Technician III	42.46
30494 - Unexploded (UXO) Safety Escort	29.28
30495 - Unexploded (UXO) Sweep Personnel	29.28
30501 - Weather Forecaster I	21.24
30502 - Weather Forecaster II	25.84
30620 - Weather Observer, Combined Upper Air Or Surface Programs (see 2)	20.55
30621 - Weather Observer, Senior (see 2)	20.75
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	35.43
31020 - Bus Aide	15.42
31030 - Bus Driver	21.01
31043 - Driver Courier	18.06
31260 - Parking and Lot Attendant	14.33
31290 - Shuttle Bus Driver	16.95
31310 - Taxi Driver	16.58

31361 - Truckdriver, Light	19.53
31362 - Truckdriver, Medium	21.01
31363 - Truckdriver, Heavy	27.81
31364 - Truckdriver, Tractor-Trailer	27.81
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	17.27
99030 - Cashier	14.86
99050 - Desk Clerk	16.53
99095 - Embalmer	29.28
99130 - Flight Follower	29.28
99251 - Laboratory Animal Caretaker I	16.98
99252 - Laboratory Animal Caretaker II	18.38
99260 - Marketing Analyst	33.01
99310 - Mortician	29.28
99410 - Pest Controller	27.43
99510 - Photofinishing Worker	15.39
99710 - Recycling Laborer	27.07
99711 - Recycling Specialist	31.73
99730 - Refuse Collector	25.16
99810 - Sales Clerk	16.70
99820 - School Crossing Guard	24.75
99830 - Survey Party Chief	25.39
99831 - Surveying Aide	15.95
99832 - Surveying Technician	21.83
99840 - Vending Machine Attendant	23.56
99841 - Vending Machine Repairer	29.38
99842 - Vending Machine Repairer Helper	23.56

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor; 3 weeks after 5 years, 4 weeks after 10 years, and 5 weeks after 20 years.

Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am.

If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered

overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage

determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the "Service Contract Act Directory of Occupations" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."

Provisions

52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (RFO DEVIATION MAR 2026)

This addendum replaces the term “offer” with “quote” within the provision at 52.212-1.

Quote Submission Requirements:

The contractor must provide evidence of understanding of the requirement through a written technical quote that addresses the requirements and shows clear understanding of the PWS.

---Addendum to 52.212-1---

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (RFO DEVIATION MAR 2026)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Federal Acquisition Regulation: <https://www.acquisition.gov/far>

Department of the Interior Acquisition Regulation: <https://www.acquisition.gov/diar>

(End of provision)

52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Department of the Interior Acquisition Regulation (48 CFR Chapter 14) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

The following provisions are hereby incorporated by reference:

52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. (Sep 2024)

52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. (Jan 2017)

52.204-7 SYSTEM FOR AWARD MANAGEMENT (RFO DEVIATION MAR 2026)

The following provisions are included in full text:

52.212-2 Evaluation—Commercial Products and Commercial Services (DEVIATION DATE)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Technical, Past performance, and Price

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.225-25 Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. (Jun 2020)

(a) *Definitions*. As used in this provision-

Person—

(1) Means—

(i) A natural person;

(ii) A corporation, business association, partnership, society, trust, financial institution, insurer, underwriter, guarantor, and any other business organization, any other nongovernmental entity, organization, or group, and any governmental entity operating as a business enterprise; and

(iii) Any successor to any entity described in paragraph (1)(ii) of this definition; and

(2) Does not include a government or governmental entity that is not operating as a business enterprise.

Sensitive technology-

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act ([50 U.S.C. 1702](#)(b)(3)).

(b) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(c) Except as provided in paragraph (d) of this provision or if a waiver has been granted in accordance with Federal Acquisition Regulation (FAR) [25.703-4](#), by submission of its offer, the offeror—

(1) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(2) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(3) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR [25.703-2](#)(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act ([50 U.S.C. 1701](#) et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(d) *Exception for trade agreements.* The representation requirement of paragraph (c)(1) and the certification requirements of paragraphs (c)(2) and (c)(3) of this provision do not apply if-

(1) This solicitation includes a trade agreements notice or certification (e.g., [52.225-4](#), [52.225-6](#), [52.225-12](#), [52.225-24](#), or comparable agency provision); and

(2) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(End of provision)

52.240-90 Security Prohibitions and Exclusions Representations and Certifications.

a) *Definitions.* As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

- (1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and
- (2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

- (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures*.

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders.*

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror’s possession but does not need to include an internal or third-party audit.

(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the

offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

- (i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;
 - (ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and
 - (iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)
- (2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—
- (i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and
 - (ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.
 - (iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure.*

- (1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:
- (i) Contract number and order number, if applicable;
 - (ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

- (iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);
 - (iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));
 - (v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;
 - (vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);
 - (vii) Whether alternative products or services are available that would be compliant with the prohibition;
 - (viii) If the product or service is related to item maintenance, include the following information on the item being maintained:
 - (A) Brand;
 - (B) Model number, OEM number, manufacturer part number, or wholesaler number; and
 - (C) Item description, as applicable.
 - (ix) Any readily available information about mitigation actions undertaken or recommended.
- (2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:
- (i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.
 - (ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.
- (3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.
- (h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

(1) "Trade Secret" means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.

(2) "Confidential commercial or financial information" means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers "commercial and financial information obtained from a person and privileged or confidential," and exemption (9), which covers "geological and geophysical information, including maps, concerning wells."

(b) If the offeror, or its subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend: "The information specifically identified on pages _____ of this proposal constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract."

(c) The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend:

"This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal."

(d) Information in a proposal identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of

Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's proposal due to clerical error.

(End of provision)

---End of Addendum to 52.212-1---